

23VECV05702 23VECV05702

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-18

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Case Number: 23VECV05702 Hearing Date: September 18, 2026 Dept: B

Tentative Ruling

Barrett v. Jackson, Case no. 23VECV05702

Hearing date September 18, 2026

Plaintiff

Barrett's Motion to Compel Defendant Jacksun to File Responsive Pleading

Plaintiff

Barrett sues defendants Jacksun, erroneously sued as "Jackson," Jermaine L. Jackson, Inc. and Work Records, Inc., alleging sexual assault. Default was entered on 4/23/26, and default judgment was entered on 5/14/26. Defendant Jacksun moved to set aside the default and default judgment, quash service and request leave to file a proposed demurrer. The court granted the motion to set aside, denied the request to quash and ordered Jacksun to file the proposed demurrer within 10 days. See 6/20/26 Min. Order; 7/7/26 Min. Order.

Defendant

Jacksun did not file the demurrer as ordered. Defendant Jacksun did file a notice of intent to file a writ in the Court of Appeal on 7/7/26. On 9/9/26 the Court of Appeal ordered plaintiff to file a response to Jacksun's petition on or before 10/9/26, and Jacksun to file a reply on or before 11/9/26. See 9/9/26 Not. of Ruling, Jacksun v. Superior Court (Barrett), case no. B355686.

Plaintiff

now moves to compel Jacksun to file a responsive pleading pursuant to Code Civ. Proc. §128(a)(4). Jacksun opposes.

Code

Civ. Proc. §128(a)(4) permits the court to compel obedience to its judgments, orders and processes. Plaintiff argues the court should compel Jackson to file a responsive pleading in accordance with the court's prior order.

Defendant

Jackson argues Code Civ. Proc. §418.10 precludes such an order. Code Civ. Proc. §418.10(c) states:

"If the motion is denied by the trial court, the defendant, within 10 days after service upon him or her of a written notice of entry of an order of the court denying his or her motion, or within any further time not exceeding 20 days that the trial court may for good cause allow, and before pleading, may petition an appropriate reviewing court for a writ of mandate to require the trial court to enter its order quashing the service of summons or staying or dismissing the action. The defendant shall file or enter his or her responsive pleading in the trial court within the time prescribed by subdivision (b) unless, on or before the last day of the defendant's time to plead, he or she serves upon the adverse party and files with the trial court a notice that he or she has petitioned for a writ of mandate. The service and filing of the notice shall extend the defendant's time to plead until 10 days after service upon him or her of a written notice of the final judgment in the mandate proceeding. The time to plead may for good cause shown be extended by the trial court for an additional period not exceeding 20 days (emphasis added)."

As

the writ process is ongoing in the appellate court, this court has no authority to order Jackson to file a responsive pleading. The parties are to contact the court within 2 court days of any appellate court rulings to re-set this motion for hearing, or defendant Jackson may elect to file a responsive pleading within 5 court days of an appellate court ruling. A case management regarding status of the appeal will be set in 90 days.